

26SMCV03843 26SMCV03843

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Case Number: 26SMCV03843 Hearing Date: September 9, 2026 Dept: O

TENTATIVE RULING

September 9, 2026

26SMCV03843 (Gotham West Properties
LLC v. Brustad)

INSTANT MOTION

On August 25, 2026, defendant Lila Brustad
(Defendant) filed the instant motion to quash service of summons. Plaintiff
Gotham West Properties LLC (Gotham) filed an opposition. No reply has been
filed.

DISCUSSION

The Court finds that service on
Defendant was effective. After registered California process server Ryan Sallee
made five unsuccessful attempts to personally serve Defendant at the premises
she occupies, Plaintiff obtained a Court order authorizing service by posting
and certified mail under Code of Civil Procedure section 415.45. Sallee then
complied with that order by posting the summons, complaint, and related
unlawful detainer documents at the premises on August 4, 2026, and mailing
copies to Defendant at the same address by certified mail. (Sallee Decl. ¶¶
2–6; Bachour Decl. ¶¶ 2–3, Exhs. 1–2.)

Defendant offers no evidence to the
contrary. She submits no declaration denying service, identifies no defect in

the Court-authorized posting or mailing, and does not challenge any of the five prior service attempts. Her memorandum instead leaves three alternative “[Option A],” “[Option B],” and “[Option C]” theories unfinished and never identifies what Plaintiff supposedly did wrong. The registered process server’s return is presumptive evidence of the facts stated in it, and Defendant has produced nothing to rebut that presumption. (Evid. Code, § 647; Palm Property Investments, LLC v. Yadegar (2011) 194 Cal.App.4th 1419, 1427–1428 [registered process server’s return creates a statutory presumption of the facts stated in the return]; Sallee Decl. ¶¶ 1, 4– 6.)

Defendant’s sole cited case also does not assist her. Rutterberg v. Rutterberg (1997) 53 Cal.App.4th 801 concerns wrongful-death joinder, not service of summons, section 415.45, or reasonable diligence. (Id. at pp. 806–808.) It provides no basis to invalidate the service performed here. (Def.’s Mot. at p. 2.)

Accordingly, Defendant’s motion to quash service of summons is DENIED.